

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
QUINTYN OLIVO, FELICITY OLIVO, and NOHEME
PEREZ,

Plaintiffs designate

Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose

-against-

SUMMONS

CITY OF NEW YORK, Individually and in their capacities
as New York City Police Officers, IDALIA CASTILLO,
and JOHN or JANE DOE 1-10,

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 19, 2019



SIM & DEPAOLA, LLP

BY: Samuel DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

P.O. IDALIA CASTILLO
41ST New York City Police Department Precinct
103 Longwood Avenue
Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
QUINTYN OLIVO, FELICITY OLIVO, and NOHEME
PEREZ,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Individually and in their capacities
as New York City Police Officers, IDALIA CASTILLO,
and JOHN or JANE DOE 1-10,

Defendants.

-----X
Plaintiffs, QUINTYN OLIVO, FELICITY OLIVO, and NOHEME PEREZ, by their
attorneys, SIM & DEPAOLA, LLP, for their complaint against the above Defendants, allege as
follows:

1. These claims arise from an April 20, 2016 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained QUINTYN OLIVO, FELICITY OLIVO, and NOHEME PEREZ. Mr. Quintyn Olivo, Ms. Felicity Olivo and Ms. Noheme Perez were arrested for alleged violations of Penal Law Section 260.10 (1), Endangering the Welfare of a Child and Penal Law Section 195.05, Obstructing Governmental Administration in the Second Degree. As a result, Mr. Quintyn Olivo, Ms. Felicity Olivo and Ms. Noheme Perez were deprived of their liberty and caused to suffer substantial physical and psychological injuries. Mr. Olivo was victim of multiple assaults and batteries and was unlawfully held in police custody over the course of approximately twenty-six (26) hours. Ms. Olivo was the victim of multiple assaults and batteries

and was held unlawfully in police custody for twenty-four (24) hours. Ms. Perez had assault and batteries committed to her persona and was held unlawfully in police custody for approximately twenty-four (24) hours.

2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiffs QUINTYN OLIVO ("Mr. Olivo"), FELICITY OLIVO ("Ms. Olivo"), and NOHEME PEREZ ("Ms. Perez") each reside at 951 Hoe Avenue, Bronx County, State of New York.
4. The Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Defendant Police Officer Idalia Castillo (“Castillo”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Castillo was, at the times relevant herein, a Police Officer under Shield #16142, Tax ID #957433 in the 41st Precinct, located at 1035 Longwood Avenue, Bronx, New York 10459. Defendant Castillo is being sued in his individual and official capacities.
8. Defendant John Doe 1 was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. John Doe 1 is believed to have been a detective, sergeant, lieutenant or other supervisory officer employed by the NYPD on April 20, 2016. John Doe 1’s last name is believed to be “Lord,” or some variation thereof. John Doe 1 is believed to have been assigned to the 41st NYPD Precinct on April 20, 2016. Defendant John Doe 1’s true name and identity is currently unknown to Plaintiffs, but is known to defendants. Defendant John Doe 1 was, at the times relevant herein, a Police Officer, detective, sergeant, or lieutenant with the NYPD. Defendant John Doe 1 is being sued in his individual and official capacities.
9. Defendant John Doe 2 is the NYPD officer, sergeant, lieutenant or detective who unlawfully and inappropriately touched Ms. Olivo’s breasts and vagina during an illegal search of her person. Defendant John Doe 2 was present in Plaintiffs’ apartment when NYPD officers unlawfully entered the apartment. Defendant John Doe 2 is a white male, with a tall and hefty build. Defendant John Doe 2’s

true name and identity is currently unknown to Plaintiffs, but is known to Defendants. It is believed that Defendant John Doe 2 was, at the time of incident, assigned to the Emergency Services Unit of the NYPD or to the 41st NYPD Precinct, located at 1035 Longwood Avenue, Bronx, New York 10459. Defendant John Doe 2 is being sued in his individual and official capacities.

10. Defendant John Doe 3 is the NYPD officer, sergeant, lieutenant or detective, who kicked, punched and tasered Mr. Olivo six (6) times while Mr. Olivo was rear handcuffed. John Doe 3 is believed to have been assigned to the Emergency Services Unit of the NYPD on April 20, 2016. John Doe 3 is white male, over six (6) feet tall and weighed over two hundred thirty (230) pounds. Defendant John Doe 3's true name and identity is currently unknown to Plaintiffs, but is known to Defendants. Defendant John Doe 3 was, at the times relevant herein, a Police Officer, detective, sergeant, or lieutenant with the NYPD. Defendant John Doe 3 is being sued in his individual and official capacities.
11. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.
12. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

13. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

14. On April 20, 2016, at approximately 11:00 A.M., Mr. Olivo, Ms. Olivo and Ms. Perez resided at 951 Hoe Avenue, Bronx, New York. Ms. Perez is the mother of Mr. and Ms. Olivo.
15. On said date, time and location, Mr. Olivo and Ms. Olivo, who are brother and sister, were inside of the residence with other family members.
16. At approximately 11:00 a.m., Defendants, including Defendant Castillo, alleged that they received a radio run for an “unsupervised five (5) year old child running naked in the hallway.”
17. Ms. Perez was caring for a young child, but at no time was the child left unsupervised.
18. Defendants then falsely claim that Plaintiffs refused to open the apartment door and allow officers to conduct a wellness check.
19. When Defendants, including Castillo, John Doe 1 and John Doe 2, first came to the door of the apartment, they covered the peep hole, so that Plaintiffs could not see who was outside.
20. Defendants, including Castillo, John Doe 1 and John Doe 2, refused to make themselves visible and identifiable.

21. Mr. Olivo then called 911 for assistance, as he and his family members could not identify the people at his door as officers and were fearful for their safety.
22. The 911 dispatcher instructed Mr. Olivo not to open the door and that police were on their way.
23. Eventually, Mr. Olivo realized that the unidentified individuals outside the door were police officers.
24. Upon his realization, Mr. Olivo opened the door with the chain lock still on.
25. Mr. Olivo opened the door in this manner, so that the officers could visibly see that the five (5) year old child was fine and well.
26. At no point was the child in any danger or distress.
27. On said date, time and location, Ms. Perez was at a meeting at her son's school, P.S. 75.
28. Ms. Perez received a call from her son, Mr. Olivo that Defendants were at her home.
29. Ms. Perez then rushed home.
30. When Ms. Perez arrived at her residence, Defendants, including Castillo, John Doe 1 and John Doe 2, refused to tell her anything.
31. Ms. Perez then began recording Defendants with her phone.
32. An NYPD officer, believed to be John Doe 1, then illegally confiscated Ms. Perez's phone.
33. Defendants, including Castillo, John Doe 1 and John Doe 2, refused to allow plaintiff to enter her apartment.

34. At that time, Defendants, including Castillo, John Doe 1 and John Doe 2 refused to allow Ms. Perez to enter her residence.
35. Ms. Perez was then falsely arrested by Defendant Castillo for no valid reason, as Ms. Perez was only trying to enter her residence and was committing no crimes or violations of the law.
36. Defendant Castillo then illegally searched Ms. Perez without reasonable suspicion or probable cause to do so.
37. Defendant Castillo then removed Ms. Perez' property from her person without lawful authority.
38. Defendant Castillo then proceeded to illegally search Ms. Perez' purse.
39. Ms. Perez inquired as to why she was being arrested.
40. Defendant John Doe 1 responded, "for your safety."
41. The Defendants, including Castillo, John Doe 1 and John Doe 2, forcibly grabbed Ms. Perez' person, unlawfully taking into her into custody.
42. Ms. Perez was then transported to Lincoln Hospital in handcuffs.
43. Defendant Castillo was the arresting officer in the arrest of Mr. Olivo, Ms. Olivo and Ms. Perez.
44. Mr. Olivo's arrest number was B16622591.
45. After Ms. Perez was unlawfully arrested, Defendants, including, Castillo, John Doe 1 and John Doe 2, demanded that Mr. Olivo open the apartment door.
46. Mr. Olivo informed Defendants, including Castillo, John Doe 1 and John Doe 2, that he has already produced the five-year-old, in satisfaction of Defendants original demand for visual observation.

47. Mr. Olivo further informed Defendants, including Castillo, John Doe 1 and John Doe 2, that the 911 operator had instructed him to not open the door and to await the arrival of additional NYPD officers.
48. Defendants, including Castillo, John Doe 1 and John Doe 2, then broke through the door and forcibly gained entry to the apartment residence.
49. Defendants, including Castillo, John Doe 1 and John Doe 2, never possessed a valid judicial search warrant to enter the apartment residence.
50. Defendants, including Castillo, John Doe 1 and John Doe 2, never possessed probable cause to enter the apartment residence, as there were no exigent circumstances present to warrant such an intrusion.
51. Defendants, including Castillo, John Doe 1 and John Doe 2, never possessed probable cause to enter the apartment residence, as Defendants did not observe any crimes or violations of the law that were committed, being committed, or about to be committed.
52. Plaintiffs never committed any crimes or violations of the law, as they were all peacefully residing in their residence.
53. Defendants, including Castillo, John Doe 1 and John Doe 2, entered Plaintiff's apartment residence unlawfully with their automatic weapons drawn.
54. Defendants, including Castillo, John Doe 1 and John Doe 2, then forcibly slammed Mr. Olivo and Ms. Olivo to the floor.
55. Defendants, including Castillo, John Doe 1 and John Doe 2, then unlawfully arrested and placed Mr. Olivo and Ms. Olivo in handcuffs for no valid reason.
56. Ms. Olivo was a minor at the time, as she was then sixteen (16) years old.

57. Defendant John Doe 2 then proceeded to unlawfully search Ms. Olivo's person by inappropriately fondling her breasts and vagina.
58. During said unlawful search of Ms. Olivo's person, she screamed out to her family that she was "being touched."
59. Ms. Olivo further pleaded with Defendant John Doe 2 to stop his flagrantly inappropriate search of her person.
60. Ms. Olivo, therefore, had assaults and batteries of a sexual and physical nature committed to her person by Defendant John Doe 2 in the presence of at least ten (10) other NYPD officers, detectives, and/or supervisors, including Defendant Castillo, who failed to intercede on her behalf.
61. Mr. Olivo, while in handcuffs, verbally protested the unlawful and egregiously inappropriate touching of his sister, Ms. Olivo, by Defendant John Doe 2.
62. Defendants, including Castillo, John Doe 1, John Doe 2 and John Doe 3, in response to Mr. Olivo's verbal protests, proceeded to kick Mr. Olivo in the face and body multiple times, causing substantial injuries to his person.
63. Mr. Olivo was subjected to further excessive force, when he was tasered approximately six (6) times by Defendant John Doe 3, all while rear handcuffed and defenseless.
64. Defendants committed assault and batteries to Mr. Olivo's person in violation of Mr. Olivo's civil right to be free from excessive force.
65. Mr. Olivo lost consciousness due to the Defendants' egregious and gratuitous use of excessive force.

66. Mr. Olivo eventually regained consciousness in his apartment residence in a pool of his own vomit.
67. Mr. Olivo and Ms. Olivo were then unlawfully taken into custody and transported to Lincoln Hospital to be treated for their various physical and psychological injuries caused by Defendants, including Castillo, John Doe 1, John Doe 2 and John Doe 3.
68. Defendants, including Castillo, John Does 1, 2 and 3, unlawfully detained Ms. Olivo in handcuffs inside of Lincoln Hospital for twenty-four (24) hours, until she was released from the hospital the next day at approximately 11:00 a.m.
69. Defendants, including Castillo, John Does 1, 2 and 3, unlawfully detained Mr. Olivo in handcuffs inside of Lincoln Hospital, while he was being treated for his injuries.
70. Defendants, including Castillo, John Does 1, 2 and 3, then transported Mr. Olivo to the 41st NYPD Precinct, where he was criminally processed.
71. Mr. Olivo was then transferred to Bronx Central Booking, where he was released without seeing a judge or being formally charged with any crimes or violations of the law.
72. Mr. Olivo was released from Bronx Central Booking on April 21, 2016 at 3:00 p.m.
73. The Bronx District Attorney's Office declined to prosecute Mr. Olivo for any crimes or violations of the law.
74. The Bronx District Attorney's office determined that no crimes or violations of the law had been committed by Plaintiffs, because Defendants, including Castillo,

John Does 1, 2 and 3, never observed the child in Plaintiffs' apartment to be in distress or danger.

75. The Bronx District Attorney's Office also concluded that Defendants, including Castillo, and John Does 1, 2 and 3, forcibly entered the residence.
76. Defendants, including Castillo, and John Does 1, 2 and 3, illegally entered Plaintiffs' residence without consent, a valid warrant, or any other lawful reason to do so.
77. Defendants, including Castillo, and John Does 1, 2 and 3, illegally searched plaintiffs.
78. Defendants, including Castillo, and John Does 1, 2 and 3, did not have reasonable suspicion or probable cause to stop, question, frisk, search or seize Plaintiffs, as there were no indicia of criminal activity.
79. Plaintiffs never committed any crimes or violations of the law, including Endangering the Welfare of a child and Obstructing Governmental Administration.
80. Defendants, including Castillo, and John Does 1, 2 and 3, did not observe Plaintiffs committing any crimes or violations of the law.
81. Plaintiffs were rear handcuffed in an excessively tight manner by Defendants, including Castillo, John Does 1, 2 and 3, or at the direction of Defendants, including Castillo, John Does 1, 2 and 3, which caused severe and permanent injury to Plaintiffs' wrists.
82. At no time did Defendants possess a valid arrest warrant issued against Mr. Olivo, Ms. Olivo or Ms. Perez.

83. Defendants, including Castillo, John Does 1, 2 and 3, had no probable cause or reasonable suspicion to arrest Mr. Olivo, Ms. Olivo or Ms. Perez., as Mr. Olivo, Ms. Olivo or Ms. Perez had not committed any crime or violation of the law.
84. Defendant Castillo falsely alleged that Plaintiffs committed the crimes of Endangering the Welfare of a Child and Obstructing Governmental Administration in the Second Degree, when Defendant Castillo knew such claims to be untrue and unsupported by any actual probable cause.
85. Defendants, including Castillo, and John Does 1, 2 and 3, arrested Plaintiffs without justification or probable cause, as Plaintiffs had not committed any crimes or violations of the law.
86. Defendants, including Castillo, and John Does 1, 2 and 3, were fully aware, or should have been fully aware, that they lacked probable cause to arrest Plaintiffs, but proceeded to arrest Plaintiffs, nonetheless.
87. Defendants, including Castillo, and John Does 1, 2 and 3, knew, or should have known, that there was no probable cause to believe that Plaintiffs committed any crimes or violations of the law because Defendants, including Castillo, and John Does 1, 2 and 3, never observed the child in Plaintiffs' apartment in distress or danger.
88. Defendants, including Castillo, and John Does 1, 2 and 3, knew, or should have known, that there was no probable cause to believe that Plaintiffs committed any crimes or violations of the law because Defendants, including Castillo, and John Does 1, 2 and 3, were never informed by any witnesses that the child in Plaintiffs' apartment was in any distress or danger.

89. Defendants have displayed a pattern and practice of falsely arresting individuals who committing no crimes or violations of the law, such as Mr. Olivo, Ms. Olivo and Ms. Perez.
90. At all times relevant hereto, Defendants, including Castillo, John Does 1, 2 and 3, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
91. At all times relevant hereto, Defendants, including Castillo, John Does 1, 2 and 3, were involved in the decision to unlawfully touch and use excessive force against Plaintiffs or failed to intervene when they observed others unlawfully touching and using excessive force against Plaintiffs.
92. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiffs' arrests without probable cause.
93. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion and such failures directly and proximately resulted in Plaintiffs' unlawful arrests.
94. The instant arrests of Plaintiffs, without even the semblance of probable cause, were so egregious that they are tantamount to deliberate indifference by the policy and decision makers within the NYPD and City of New York, as the need for enhanced training and supervision has become obvious due to the clear lack of any probable cause to arrest Plaintiffs.

95. Upon information and belief, further details and factual allegations regarding Defendant City's customs, policies, or lack thereof, will become available after the disclosure process is completed, as the current policies and customs of the NYPD and City of New York that gave to the instant claims are within the exclusive knowledge of Defendants.
96. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Plaintiffs.
97. As a direct and proximate result of the acts of Defendants, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION
False Arrest and False Imprisonment Under
New York State Law

98. The above paragraphs are here incorporated by reference as though fully set forth.
99. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
100. Plaintiffs were conscious of their confinement.

101. Plaintiffs did not consent to their confinement.
102. Plaintiffs' arrests and false imprisonment were not otherwise privileged.
103. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
104. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
105. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

106. The above paragraphs are here incorporated by reference as though fully set forth.
107. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
108. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
109. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
110. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
111. By reason of the above, the amount of damages sought on this cause of action

exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

112. The above paragraphs are here incorporated by reference as though fully set forth.
113. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
114. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered them without his consent.
115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
116. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
117. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

120. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.
121. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
122. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

123. The above paragraphs are here incorporated by reference as though fully set forth.
124. Defendants initiated the prosecution against Plaintiffs.
125. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
126. Defendants acted with malice.
127. The prosecutions were terminated in Plaintiffs' favor.
128. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
129. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
130. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

- 131. The above paragraphs are here incorporated by reference as though fully set forth.
- 132. Defendants initiated the prosecution against Plaintiffs.
- 133. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
- 134. Defendants acted with malice.
- 135. The prosecution was terminated in Plaintiffs' favor.
- 136. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.
- 137. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
- 138. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

- 139. The above paragraphs are here incorporated by reference as though fully set forth.
- 140. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
- 141. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

142. Defendants intended to inflict substantial harm upon Plaintiffs.
143. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
144. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
146. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

147. The above paragraphs are here incorporated by reference as though fully set forth.
148. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
149. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
150. Defendants intended to inflict substantial harm upon Plaintiffs.
151. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.

152. Defendants' actions deprived Plaintiffs of their right to free from illegal searches and seizures, as well as their right not to be deprived of his liberty without due process of law.
153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
154. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

155. The above paragraphs are here incorporated by reference as though fully set forth.
156. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
157. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
158. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
159. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

160. The above paragraphs are here incorporated by reference as though fully set forth.
161. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
162. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
163. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
164. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

165. The above paragraphs are here incorporated by reference as though fully set forth.
166. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
167. Defendant City breached that duty of care.
168. Defendant City placed defendants in a position where they could inflict foreseeable harm.

169. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
170. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
171. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
172. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

173. The above paragraphs are here incorporated by reference as though fully set forth.
174. Defendant City maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.
175. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
176. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that Defendant City's failure rises to the level of deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

177. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

178. Defendant City's conduct violated Plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution.

179. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

180. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action .

Dated: Bayside, New York
April 19, 2019

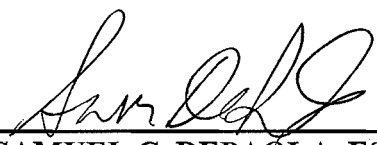


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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me, and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 19, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

QUINTYN OLIVO, FELICITY OLIVO, AND NOHEME PEREZ,

Plaintiffs,

-against-

CITY OF NEW YORK, Individually and in their capacities as New York City Police Officers,
IDALIA CASTILLO, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for